IN THE DISTRICT COURT HELD AT WEIJA, ACCRA, ON WEDNESDAY, THE 2ND DAY OF APRIL, 2025, BEFORE HER WORSHIP RUBY NTIRI OPOKU (MRS), DISTRICT MAGISTRATE

SUIT NO. G/WJ/DG/A1/15/20

MICHAEL G. VIDZA **PLAINTIFF**

VRS

1. **BABA SOLOMON**
2. **SISTER DZIFA** **DEFENDANTS**
3. **SISTER MARY**
4. **SISTER ELLEN**

PARTIES: PLAINTIFF IS PRESENT

DEFENDANTS ARE ABSENT

LEGAL REPRESENTATION:

NANA AKUA APPIAGYEI MENSAH ESQ. FOR PLAINTIFF

JUDGMENT

The plaintiff issued a writ of summons at the registry of this court on 10th September 2020 for the following reliefs;

1. An order of eviction against the defendants from the plaintiff's land situate at Tuba.
2. Removal of all structures (containers) erected by the 3rd and 4th defendants on the plaintiff's land.
3. Costs and any further orders as the Honourable Court may deem fit.

The 1st defendant upon service of the writ entered conditional appearance through his lawyer on 11th November 2020 and filed his statement of defence on 23rd February 2021. On 24th May 2021, the plaintiff filed a reply to 1st defendant's statement of defence.

On 13th October 2023, 1st defendant was present in court and indicated to the court that the land in dispute belongs to one Abdul Naziru Adams however he failed to appear in court to testify to same or produce any evidence to support his assertion despite the many notices served on him.

1st defendant also informed the court that he had neither engaged the services of any lawyer nor had he given instructions for a statement of defence to be filed on his behalf but 1st defendant never filed a Notice or Application for the removal of his lawyer on record.

The lawyer on record for the defendant appeared in Court and prayed the court for a short adjournment to enable him make an application to join a necessary party to the suit for the complete and effective determination of the dispute. Notwithstanding the above, the 1st Defendant, his lawyer on record and the other defendants failed to appear in court despite the fact that hearing notices were served on all of them before each court date.

The court therefore proceeded without them by dismissing their counterclaim and allowing the plaintiff to prove his claim pursuant to order 25 r1(2) (a) of the District Court Rules 2009, C.I. 59.

SUMMARY OF PLAINTIFF'S CASE

The plaintiff's case is that he acquired a piece of land, the subject matter of this dispute in 1994 from the Akramanaa Family of Ngleshie Amanfro through the chief of Ngleshie Amanfro and the head of the Akramanaa family with the consent and concurrence of all the elders and an indenture was issued to him by his grantors dated 4th May 1999.

It is the plaintiff's case that he attempted to register the land in the year 2000 however by a letter from the Lands Commission, he was informed that same could not be done because the land was state land. The plaintiff says that he entered into possession of the land and put up two single rooms on one side of the land and made a foundation of the main building on the other side of the land. The plaintiff says that during that time, there

were a number of land guards in the area who constantly harassed land owners and 1st defendant who was a land guard approached him and requested for permission to live in one of his single rooms. After much persuasion, he allowed the 1st defendant to live in one of the single rooms as a caretaker to prevent other land guards from harassing him or his enjoyment of the property.

Plaintiff says he gave one of the other single room to one Alex Ahiakonu now deceased to reside on the land as a caretaker.

After the death of Alex Ahiakonu, 1st defendant rented out the second single room to the 2nd defendant without his knowledge and consent and has never rendered accounts of the rent to him.

Subsequently 1st defendant rented out a portion of the land to 3rd and 4th defendants who mounted containers on the land without plaintiff's knowledge and consent.

It is the further case of the plaintiff that he wants to continue with the development of his land and has given several verbal notices to defendants to yield vacant possession of all the rooms and remove all structures erected on the land to no avail. He made a complaint at the police station where he was advised to sue defendants in court.

According to plaintiff, he is a member of the Land Owners Association in the area and pays dues to the said Association as well as payments to the Ngleshie Amanfro Divisional Stool. In 2019, in view of the registration of land, the plaintiff says he conducted a search at the lands commission which report indicated that the land was not a state land and that same belongs to his grantors, the Akramanaa family of Ngleshie Amanfro.

To prove his claim, plaintiff relied on his indenture with an attached site plan from the Akramanaa Family dated 4th May 1999, copies of pictures of the foundation for the main building, copy of membership card and receipts of dues paid to Association of Canal residence, receipts of various payments to the stool as owner of the land, search reports

dated 22nd November 2022 and 14th May 2021 which were admitted in evidence and marked as Exhibits A, B series, C series, D and E series.

He called Linus Freeman Amadaah as his witness. The witness corroborated the story of the plaintiff when he testified that he has known plaintiff since 1990 when he was building a house for the brother of plaintiff. It is his case that he was the one who led plaintiff to buy two plots of land. He added that plaintiff contracted him to build four rooms which he built to lentil level. He completed one and roofed same after which he had a contract which took him out of Accra.

ISSUES FOR DETERMINATION

The issue that was set down for determination was whether plaintiff is the owner of the land the subject matter of this dispute and if so whether he is entitled to an order of eviction against the defendants.

BURDEN OF PROOF

It is trite that he who asserts bears the burden of proof which in civil cases is proof by preponderance of probabilities.

In Adwubeng v Dumfeh [1996-97] SCGLR 660 at holding 3 of the headnotes, it was held as follows;

"Sections 11(4) and 12 of the Evidence Decree, 1975 (NRCD 323) (which came into force on 1 October 1979) have clearly provided that the standard of proof in all civil action was proof by preponderance of probabilities-no exceptions were made."

A party who asserts a positive fact is enjoined by law to adduce cogent and sufficient evidence in proof of his or her claim.

Sections 10 and 11 of the Evidence Act, 1975 (NRCD 323) provides as follows;

Section 10 – Burden of persuasion defined

(1) For the purposes of this Act, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the court.

(2) The burden of persuasion may require a party (a) to raise a reasonable doubt concerning the existence or non-existence of a fact or (b) to establish the existence or non-existence of a fact by the preponderance of the probabilities or by proof beyond reasonable doubt.

Section 11- Burden of producing evidence defined

(1) For the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling on the issue against that party.

(4) In other circumstances, the burden of producing evidence requires a party to introduce sufficient evidence which on the totality of the evidence leads a reasonable mind to conclude that the existence of a fact was more probable than its non-existence.

The burden of proof may shift from a party to the other during the trial depending on the issue asserted or denied. See section 14 of NRCD 323.

In **JASS CO. LIMITED V APPAU (2009) SCGLR 265**, the Supreme Court in holding1stated as follows;

"The burden of proof was always on the plaintiff to satisfy the court on a balance of probabilities in an action for a declaration of title to land. Where the defendant has not counterclaimed and the plaintiff has not been able to make out a sufficient case against the defendant, then the plaintiff's claim would be dismissed. Whenever the defendant also files a counterclaim, then the same standard or burden of proof would be used in evaluating and assessing the case of the defendant just as it was used to evaluate and assess the case of the plaintiff against the defendant."

In **YEHANS INTERNATIONAL LIMITED V MARTEY TSURU FAMILY & ANOR (2018) suit no. J4/34/2018 dated 24th October 2018**, Adinyira JSC stated as follows;

"It is settled and trite law that a person claiming title has to prove

i) His root of title
ii) Mode of acquisition and
iii) Various acts of possession exercised over the land"

In **WUTA -OFEI V DANQUAH [1961] GLR 487 at 491**, the court held as follows;

"a person who is relying on possession as his title must show that he is in physical possession or has a right to possession as having erected a building on it or planted crops on it or done something on it symbolic of ownership and generally exercising dominion over the land such as by placing a lessee (tenant), a licensee or an agent on it"

In SAAKA V DAHALI [1985] DLHC 995, the court held as follows;

"It is trite learning that a person in possession of land however that possession was acquired has a title to that land which is good against the whole world except the true owner or a person claiming through the true owner."

EVALUATION OF THE EVIDENCE AND THE DECISION OF THE COURT

It has been the case of the plaintiff that since his acquisition of the land in 1999, he has been in active possession of same doing acts symbolic of ownership and generally exercising dominion over the land.

From the evidence, I find that plaintiff traces his root of title to the Akramanaa family of Ngleshie Amanfro by his Exhibit A.

He tendered exhibits B series to show various acts of possession exercised over the land comprising two single rooms as well as foundation for the main building constructed on

the four corners of the land in dispute. He testified that he put the 1st defendant and one Alex Ahiakonu on the land as care takers which assertion was corroborated by his witness.

In addition to the various acts of possession on the land, plaintiff says he is an active member of the Canal Avenue Residence Association (an association of Land owners in the area) where he pays monthly dues as evidenced by Exhibit C series. I find from Exhibit E that plaintiff makes various payments to the stool as acts of ownership of the land.

From the totality of the evidence, I find that plaintiff has demonstrated his title to the land, various acts of ownership including putting caretakers on the land as well as several payments to his grantors as the owner of the land. I hold that on the balance of probabilities, plaintiff has been able to prove his claim and is therefore entitled to his claims.

Judgment is accordingly entered for the plaintiff as follows;

1. It is hereby declared that plaintiff is the owner of the land the subject matter of this dispute and is entitled to recovery of same.
2. Defendants are ordered to vacate from the land the subject matter of this dispute, remove all structures erected on the land or in the alternative pay for the removal of all structures erected on the land and yield up vacant possession of same to the plaintiff immediately.
3. Costs of GHC10,000.00 is awarded against each of the defendants in favour of the plaintiff.

……..(SGD)……..

H/W. RUBY NTIRI OPOKU (MRS.)

MAGISTRATE